

REQUEST FOR GENDER-NEUTRAL MENSTRUAL PRODUCTS TO BE AVAILABLE FREE IN ALL BATHROOM STALLS IN CANADA

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Reference: A. United Way Period Promise Research Project Final Report

B: <https://nrc-publications.canada.ca/eng/view/ft/?id=515340b5-f4e0-4798-be69-692e4ec423e8>

AIM

1. It is imperative to provide gender-neutral menstruation products, which are pads and tampons of gender-neutral colour and design, and corresponding disposal receptacles in all bathroom stalls in the same way that toilet paper is provided in a free and easily accessible manner.

BACKGROUND

1. Some AFAB (assigned female at birth) people have the biological function of menstruation. Some transgender men (men who were assigned female at birth) are still capable of experiencing menstruation. While sometimes menstruation products are available in women's bathrooms, they are not accessible in all bathrooms. This can lead to discomfort and hygiene issues in the workplace, especially if persons are left without access to menstruation products. During this time, if they are available, they need to be paid for with coins. This poses a barrier to access them for those who do not have money or coins on hand.
2. Menstruation can interfere with work duties if menstruation products are not available because it is an uncontrollable reoccurring bodily function.
3. Toilet paper is provided in all bathrooms for free because it is acknowledged that humans need it to function properly throughout the day, so menstruation products require the same approach.

DISCUSSION

1. Having a person menstruate without providing menstruation products is a potential public health issue because the shedding blood could transfer pathogens if left on clothing and furniture, especially during Covid-19 regulations where it is advised by health experts to minimize contact with bodily fluids. This health concern must be addressed by providing adequate products to deal with menstruation. Outside of a Covid-19 context, this still applies as menstruation can happen when a person is not expecting it. It is necessary to provide adequate resources so the person can continue to participate fairly and equitably. People cannot choose when to menstruate so it can happen at inopportune times which acts as a barrier to service.

2. People who are unable to afford the financial cost of menstruation products are unjustly put into a position where they are unable to do their work duties due to an uncontrollable bodily function. This contributes to worldwide “period poverty”. According to a 2019 report by Plan International Canada, 34% of women and girls in Canada have had to regularly or occasionally sacrifice something else within their budget to afford menstrual products. Menstrual blood comes out uncontrollably for several days, and will stain and leak through clothes and onto other things if there are no products around to help manage this biological function. This puts the person experiencing menstruation in an uncomfortable situation if they are unable to access the products, as they may feel shamed—either privately or publicly—by being unable to manage a natural function. According to Ref A, “Menstruation is a bodily function over which people have limited control and which can be difficult to anticipate. When somebody bleeds, it is not a choice that they have made; it does demand a response. The average length of a menstrual cycle is 26.8 days, meaning that the average person who menstruates experiences 13.6 menstrual cycles each year, each one last for approximately five days. This means that, if you menstruate, you are likely to bleed for approximately 68 days a year. For every one of those days some sort of menstrual product is needed. That said, menstruation can vary dramatically from person to person. Some people bleed for longer, and some bleed more than others for the days that they do bleed. All said, menstruation is a deeply personal experience that arrives unannounced and, for those who experience period poverty, can become an unwelcome and uncontrollable barrier to community.”
3. Having menstruation products easily accessible for free in all bathroom stalls eliminates the chance of a “period panic” where the menstruating person would have to desperately look for products in order to continue with their duty. It is not respectful to force a person into this situation just for being born with a uterus. It is common for a person to be put into this situation because there can be many reasons leading to the same outcome, including: not having enough products, forgetting products, running out of products, being unprepared when menstruation happens unexpectedly, being unable to afford the products, or being ashamed to carry products around on one’s person. Having free menstruation products available in all bathroom stalls will act like having a fire extinguisher in the case of an emergency because without the products a person would not be able to function the same way as someone who does not experience menstruation. According to a 2019 report conducted by Plan International Canada, 2/3 AFAB have had to miss out on an activity because of their period and concerns about not being able to access menstrual hygiene products or proper facilities. According to Ref A, “The reliance on menstrual products to remain engaged in community combined with uncertainty of where and how it can be accessed, leads to substantial anxiety” and “When people do not have access to menstrual products they will often stay home and bleed in private, meaning they miss out on school, work, or other opportunities to be engaged in their communities. This is chosen over bleeding in public without having access to product”. The report outlines that in Canada, 68% of survey respondents indicated that their period had prevented them from full participation in an activity and 55% of respondents had

missed work, school, or declined social activities because of their period. This is directly akin to the "urinary leash" imposed on "undesirable" populations, such as historically women, who were denied access to public bathrooms to limit their public presence. In the Victorian period, the lack of public facilities for women was intentional as a way of controlling their movements and keeping them out of public spaces. This led to women not coming out of their homes and thus not participating in society or needing to adjust in inhumane ways such as drinking less water, holding in urine for longer, spending less time in public spaces.

4. Having proper menstruation products available tends to improve the experience that menstruating people have during menstruation. This also helps contribute to improving body-literacy and rejecting menstrual taboos. A positive attitude towards menstruation has a huge impact on the experience of it and the severity of menstrual health problems. Shame thrives where only private conversations can happen. For example, in order to avoid mental health stigma, we need to talk about it and raise awareness of mental health issues. The same thing needs to be done in order to remove taboos around menstruation. This is a very common biological function that occurs in at least 50% of the world population, yet many people still feel ashamed discussing menstruation and accepting it is a natural bodily function. According to Ref A, "having a period, and having to deal with the resulting impacts, can feel like a loss of control over one's body for people who menstruate because of a process that is felt to be a "dirty and disgusting" bodily phenomenon." The report also states that "Menstrual stigma makes asking for help more difficult than it should be. Menstruation continues to be regarded as unpleasant and unclean, and many people – including many people who menstruate – avoid talking about it openly. We socialize it as a private, personal matter that each person should handle independently. There are many impacts that this has on people who menstruate, but it particularly means that some of those who have limited access to product are choosing not to ask for help or don't know where help can be found. Widescale promotion of efforts to increase access to menstrual products and normalizing public conversation about menstruation as a natural and healthy function of human bodies, will help reduce the stigma that many feel."
5. Often AFAB who are unable to get menstruation products will resort to stuffing toilet paper into underwear, because toilet paper is the only thing that is readily available to them, in order to stop blood leakage. This is strongly advised against by doctors because that can lead to bacteria build-up and cause an infection. Toxic shock can happen due to using unsanitary improvised methods for catching menstrual blood, which can be deadly. Using toilet paper instead of menstruation products puts the menstruating person at risk of death. Having to resort to toilet paper in underwear can be embarrassing and distressing for the menstruating person. Menstruating soldiers without menstruation products are unable to do work duties. Tampons must be readily available because it is part of military duty to be physically fit which means that AFAB people need to be able to work out physically often so as to stay in shape. Furthermore, often military duties involve a lot of physical movement. Field exercises, career courses, rucksack marches,

and general duties around the base involve a lot of movement. An AFAB who is obligated to walk around with toilet paper stuffed in underwear just to stop menstrual blood from getting everywhere would be put at a disadvantage and would also experience extreme discomfort. Menstruating AFAB who are forced to abstain from certain activities due to their being physically unable to do them without proper menstruation products may then fall behind in work duties and career progression. Thus, a lack of proper menstrual products causes extra stress and unnecessary problems for people who happen to have a biological need to menstruate, which can in turn impact their mental health and performance at work. According to Ref A, "If people who experience period poverty do need to leave their homes without the proper product, they will often use unsanitary alternatives, including rags, old clothing, paper towel, or newspaper. Some use disposable product for longer than recommended, thereby putting their physical health at risk." also "Without access to menstrual products, many of the participants in the St. Louis study indicated that they used strips of cloth, paper towel, rags, tissues, toilet paper, children's diapers, incontinence diapers, or improvised, home-made pads or tampons" which are potentially unsanitary, pose a health risk, very uncomfortable, and humiliating to use. This a cost-saving measure since it is far cheaper to pay for the proper equipment up front, so the furnishing of menstrual products, than pay the much higher costs of health care down the line when people experience adverse outcomes due to a lack of menstrual products.

6. Providing menstrual products in all bathroom stalls so as to make them easily accessible, will minimize health risks for AFAB that use these products. If a tampon is kept in place internally for a long time, bacteria can build up and lead to Toxic Shock Syndrome (TSS) which can be deadly. TSS is a serious bacterial infection. When tampons are not changed often, staph and strep bacteria can grow inside the body. There are even several documented cases of people dying from TSS, as alluded to previously. A tampon should be changed every 4-6 hours to keep blood from leaking and must be changed every 8 hours to avoid the risk of infection and TSS. Pads also need to be changed every 4-8 hours. If menstrual products were readily available, AFAB people would be encouraged to change tampons more often to prevent bacteria from building up. This is especially crucial for those who are unable to afford a lot of products and resort to having the same tampon in for dangerously long periods of time. Changing pads often would also be encouraged if they are provided freely and accessibly, which will avoid leaks and embarrassment associated with infrequent changes. It will allow menstruating people to feel clean and get back their freedom. It helps the menstruating person to manage their periods in a healthy and dignified way.
7. Being put into a situation where the only way to respond to a problem around one's menstruation is to be forced to tell someone else, is a breach of privacy because this means someone else must be involved to find means to get products if the products are not available in a way the person who started menstruating can easily access them. It is not a disability accommodation if one has to ask for it. It is a privilege then, that can be denied if one asks the wrong person. This breach in privacy causes discomfort. Everyone

is entitled to decide for themselves what they wish to make private or public, especially on the job. This occurrence can easily happen to 50% of the world population so treating it as a public wide concern rather than on a case-by-case basis makes much more sense. Not providing the products in an easily accessible manner robs the person of the choice on whether they wish to make the matter public or not, where they would be unable to deal with it and continue on work duties unless they tell someone who would be able to help them. If it is a private thing it should be allowed to be kept private. When the products are not available in a way that anyone can take them discreetly it is impossible to keep the matter private. It forces the person to have to make it more public than they would be able to keep private the process of urination and defecation. There is no reason for why this bodily function is forced to be more public than others. This can make the person experiencing menstruation very uncomfortable and feel shame for having this bodily function simply due to being born with a uterus. It puts someone at a disadvantage due to a biological function they cannot control at all.

8. Having gender-neutral menstruation products available in all bathroom stalls free of charge will help promote the normalization of menstruation so as to stop the stigma around it. This topic is still considered taboo by many which creates a barrier in being able to talk about problems surrounding it. Having the products in open view will normalize this bodily function because it will be a reminder that menstruation exists and that we need to ensure that products are readily accessible. People are not embarrassed to see toilet paper and are not required to talk about other bodily functions publicly, however, unfortunately with menstruation, there is still a barrier in being able to acknowledge it as part of human life due to the lack of products around and the stigma that is sometimes associated with menstruation. It is common for people to hold negative and untrue ideas about menstruation such as that it is gross, embarrassing, messy, dirty, impure, shameful, painful, inconvenient, etc. Regardless of gender, it is common to internalize those negative messages and that impacts how everyone views menstruation. Negativity towards menstruation impacts how people experience menstruation; for example, if someone thinks menstruation is dirty, then they will feel dirty, whereas if someone thinks menstrual cramps are just part of life, they may tolerate menstrual cramps better.
9. Having gender-neutral menstruation products available in all stalls of men's and women's bathrooms raises awareness about transgender men. In the first place there should be gender-neutral washrooms available so to include intersex, non-binary, sex and gender diverse people into Canadian society but if universal washrooms have not yet been built in a facility during this time, then at least the menstrual products equipment need to be the same in both bathrooms. It spreads recognition of the fact that not all women menstruate and not all who menstruate are women. Transgender men are AFAB so often still have the biological function of menstruation. For transgender men, it is often already dysphoric to have a biological function that is commonly associated with the female body and women. They could be really uncomfortable asking others for products or getting them in public view. This is why the products must be available in individual stalls so

that it avoids the need to publicly demonstrate that someone is using them. It is the person's individual choice on whether to make their menstruation something public or not. In the current world, there is still a strong stigma around menstruation within all gender identities so very few people, even those that identify as cisgender women, would be comfortable talking about it publicly. To overcome the challenge of stigma it is imperative to get AMAB (assigned male at birth) people to be aware of the issues surrounding menstruation too. Having those products available in men's bathrooms will help with changing AMABs' views of menstruation. When everyone is knowledgeable on a topic, problems surrounding it can be better addressed since people are able to speak up about them. Having AMAB be aware of menstruation will help normalize the topic for all. According to a 2019 report by Plan International Canada, 58% of those who menstruate have felt the need to lie about being on their period or hide a menstrual product. Not having menstrual products readily available and visible, thereby normalizing their use, leads to strongly persisting social stigmas around menstrual products and menstruation. The report also states that 41% have been teased about being on their period, including by friends, colleagues and relatives. Interestingly, however, 47% of male respondents aged 14 to 55 said they feel comfortable talking about women's health, including periods.

10. Being able to complete work duties without having to worry about bleeding uncontrollably and/or staining one's clothes which causes discomfort, embarrassment and potential health problems, cannot be viewed as a luxury. Menstruation products are a necessity, not a luxury because without them a human who menstruates will not be able to function the same way as a human that does not menstruate and will be at a greater health risk. This creates a great deal of inequality. Not providing menstrual products communicates that it is the fault of the person that happens to have a biological function of menstruation that they are menstruating. In today's society, we do not shame or punish people for having the vital biological function of defecating or urinating, yet we shame and punish and force into uncomfortable circumstances those people who have the vital biological function of menstruating. Menstruation is more uncontrollable than defecating and urinating yet is less accommodated for due to products not being readily available and easily accessible. There is already high stress with the process lasting several days and being accompanied by cramps and other unfavourable symptoms. The respectful thing to do would be to provide products for it so that the person can deal with their menstruation in a dignified and discrete manner that allows them to function normally.
11. Canada's strength lies in its diversity. Providing gender-neutral menstruation products in all bathroom stalls removes a systemic barrier commonly faced by one of the Employment Equity Act designated groups, women. It remains a Canadian federal initiative to eliminate barriers for women. CAF follows these guidelines and has a goal of having 1 in 4 military personnel be women by 2026. As of 2020, it is at 1 in 7. Eliminating barriers to employment allows women to have the same opportunities as men to serve their country. As of right now, all AMAB bodily functions are accounted for in the workplace, but not all AFAB bodily functions are accounted for. This creates a

disadvantage for AFAB people. Ref A states a summary of the issue being that “First, periods act as a barrier for participation in Canadian society, whether that be attending school, work, or participating in other social activities. Second, menstruation and menstrual bleeding is considered by most women to be a taboo subject which is difficult to discuss and around which vulnerability, particularly in male-dominated environments, is difficult to share. Third, periods are a cause of substantial anxiety for Canadian women.” Furthermore, the Queer Community (LGBTQ2IA+) is considered an Employment Equity group within federal departments even if not explicitly listed under the Employment Equity Act during this time, thus this implementation is imperative towards the elimination of barriers for the Queer Community, specifically the sex and gender diverse, as well.

12. Gender Identity and Expression was added to Canadian Human Rights in 2017 while sex was part of the Canadian Human Rights Act since 1977. Thus, it is mandatory to work towards a Canadian society that upholds the removal of barriers based on these protected identities. Furnishing menstrual products touches upon equity development for transgender people and women.

RECOMMENDATION

1. In order to address the extra issues that people who menstruate face there must be gender-neutral menstruation products available free in all bathrooms. Dispensers with pads and tampons of gender-neutral design and colour (not overly “feminized” or “girly”, for example, with pink, swirly designs or flowers) should be located within the stall the same way toilet paper dispensers are located everywhere. There also needs to be garbage bins in all stalls specifically for the purpose of disposing of such products since used menstruation products cannot be flushed down the toilet.
2. The provision of menstrual products in federal buildings and institutions under the federal mandate has already been implemented by the federal government in Canada, under the Canada Labour Code. So, it is time to extend this provision mandate to all provinces and territories in Canada.
3. This can be achieved through adding the provision of menstrual products, menstrual product dispensers, and menstrual product waste receptacles to the National Building Code of Canada under section 3.8 which is the Barrier-Free Design Principles section, especially in Article 3.8.3.12. The provision of toilet paper dispensers in all stalls is outlined under Clause 3.8.3.12.(1)(g) of the National Building Code of Canada thus the provision of menstrual product dispensers in all stalls can be added under that section. This would ensure that menstrual products need to be restocked into the dispensers the same way toilet paper needs to be restocked due to the mandated dispensers. This is because it is a necessary barrier-free design feature for water closets to have menstrual product dispensers, menstrual product waste receptacles, and menstrual products provision so to create a space that removes barriers associated with not having menstrual

products. From this, all provinces and territories would be able to follow the guidelines on how to implement barrier-free buildings and thus a barrier-free Canadian society in terms of menstruation. One could argue that menstrual products are a more or at least as necessary tool than toilet paper in terms of health and safety along with removing barriers to functioning in society which is why it would be relevant to include it in the National Building Code of Canada.

4. Based on data gathered through contacting the governments of all provinces and territories in Canada, most of them use the National Building Code of Canada as a guideline to implement on a provincial, territorial, and municipal level so it is an effective strategy to amend requirements within the National Building Code of Canada so to encourage places that use it as a guideline to implement those amendments.
5. As of 2023, the City of Edmonton, Alberta has around 1 000 000 people with 9 public 24-hour washrooms throughout the city intended primarily for the houseless population. The City of Edmonton, Alberta spends around \$10 000 to \$12 000 annually to stock these city service bathrooms with menstrual products, including the dispensers, according to Adam Steinson from No Period Without. This metric can be extended to extrapolate the cost of furnishing menstrual products in all other cities in Canada. No Period Without gets their provision of menstrual products directly from Grand and Toy and bought in bulk which ensures that the cost per unit is less than their typical market value. They can be further contacted here: adam@noperiodwithout.com